

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX X

MICHAEL ORTIZ

Plaintiff,
 against –

ECF
 COMPLAINT
 Index N0.
 Jury Trial Demanded

CITY OF NEW YORK, P.O. KUR, IN HIS INDIVIDUAL
 AND OFFICIAL CAPACITY, DETECTIVE WILLIAM MAYE,
 IN HIS INDIVIDUAL AND OFFICIAL CAPACITY,
 P.O. JORGE MONGE, IN HIS INDIVIDUAL AND OFFICIAL
 CAPACITY, JOHN DOE NO. 1, IN HIS INDIVIDUAL
 AND OFFICIAL CAPACITY,

Defendants,

X

1. Plaintiff, MICHAEL ORTIZ, by his attorney, Welton K. Wisham, of the Law Office of Welton K. Wisham, alleges upon information, and belief the following against Defendants, The City of New York, New York City Police Officers, William Maye, Jorge Monge, Kur and Police officer John Doe No. 1, that:

JURISDICTION

2. This Court has personal jurisdiction over the defendants because the defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), and causing injury to the Plaintiff within the State of New York, Bronx County. This Court has concurrent Jurisdiction to hear Plaintiff's federal causes of action under 42 U.S. C. Section 1983.

VENUE

3. The Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

4. Plaintiff Michael Ortiz is a citizen of the United States and at all times here relevant resided in Bronx, County, and State of New York.

5. That at all times relevant herein, Defendants Police Officers William Maye, tax identification No. 906751, Jorge Monge, tax identification No. 955212, and P. O. Kur, were duly appointed as police officers assigned to the 52nd police precinct, Bronx, New York, and were acting within the scope of their employment as employees of the New York City Police Department on the date of this incident.

6. That the Defendant police officers named herein, upon information and belief, are current members of the New York City Police Department assigned to the 52nd police precinct located in Bronx, New York.

7. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant, City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

8. That the Defendant, City of New York, is a municipal corporation within the State of New York.

9. That Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

10. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

11. At all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

12. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, and procedures, including the appointment, training, supervision, discipline and retention of the Defendant officers complained of herein.

13. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and of the State of New York.

14. That Defendant officer William Maye was assigned to the 52nd police precinct located in the Bronx, New York and was, at all times here relevant, held the rank of Detective within the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York.

15. That officer Maye was responsible for supervising the investigation occurring on or about August 27, 2016, which lead to the issuance of an arrest warrant for the Plaintiff for which Plaintiff was arrested and charged on April 29, 2017.

16. That detective Maye is sued in his individual and official capacity for violating Mr. Ortiz's constitutional rights as more fully set forth herein.

17. That officer Jorge Monge was one of the Defendant officers involved in Plaintiff's arrest on April 28, 2017.

18. That police officer Monge is sued in his individual and official capacity for the violating Plaintiff's constitutional rights as more fully set forth herein.

19. That Defendant police officer Kur is sued in his individual and official capacity for his part in violating Plaintiff's constitutional rights as more fully set forth herein.

20. At all times here mentioned Defendant police officers were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City, and State of New York.

PRELIMINARY STATEMENT

21. This is a civil rights action in which Plaintiff seeks relief for the violation of his civil rights secured under the provisions of 42 U.S.C Section 1983, , and under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

22. This action is further grounded under malicious prosecution, false arrest, false imprisonment, and wrongful incarceration under New York State Law.

NOTICE OF STATEMENT OF CLAIM

23. That within 90 days of the incident, plaintiff filed written Notice of Claim with the New York City Office of the Comptroller.

24. That more than 100 days have elapsed since the filing of each of those notices, and 4this matter has not been settled or otherwise disposed of.

25. That this action has been commenced within one year and ninety days from the date of Plaintiff arrest on April 28, 2017.

FACTUAL ALLEGATIONS

26. That on or about April 28, 2017,, at approximately 6:40 p. m .Mr. Ortiz was near the corner of 184th Street, and Davidson Ave., Bronx, New York when he was observed Defendant

officer Kur and another police officer get out of their police vehicle whereby officer Kur stated to the Plaintiff, "I've been trying to get at you for a while, where you been at"?

27. The officers demanded that Plaintiff get against a wall whereby the officers began to search the Plaintiff throughout his body.

28. The search reveled the Mr. Ortiz was carrying marijuana for which he was arrested and charged with criminal possession of marihuana in the fifth degree, pursuant to New York's Penal Law Section 221.10 per docket no. 2017BX 017600.

29. That criminal possession of marihuana in the fifth degree is a class B misdemeanor.

30. Plaintiff was also charged with Unlawful Possession of Marihuana under penal law section 221.05.

31. That the unlawful possession of marihuana is a violation punishable by a fine of not more than one hundred dollars.

32. The Court set bail in the amount of \$ 1 on the marijuana charges on April 30, 2017 under docket no. 2017BX 017600.

33. In addition to the charges set forth above, Mr. Ortiz was surprised to learn when he reached the 52nd police precinct that there was an outstanding arrest warrant for his arrest charging Plaintiff with the following crimes as alleged by Detective William Maye:

1. Attempted Murder, pursuant to Penal Law (P. L.) Section 110/125.25(1)
2. Assault in the First Degree pursuant to P. L. Section 120.10(1)
3. Gang Assault in the First Degree pursuant to P.L. Section 120.07
4. Gang Assault in the Second Degree pursuant to P.L. Section 120.06
5. Assault in the Second Degree pursuant to P.L. Section 120.05 (1)
6. Assault in the Second Degree pursuant to P.L. Section 120.05 (2)

7. Assault in the Third Degree pursuant to P.L. Section 120. (1)

8. Criminal Possession of a Weapon, Fourth Degree pursuant to P.L. Section 265.01 (1)

9. Criminal Possession of a Weapon in the Fourth Degree pursuant to P.L. Section 265.01 (2)

10. Harassment in the Second Degree pursuant to P.L. Section 240.26(1)

34. That bail was set in the amount of \$ 50,000 under docket no 2017BX017599.

35. Mr. Ortiz was remanded to Rikers Island on April 30, 2017.

36. The Honorable Criminal Court Justice John Moore presided over the preceding and set May 4, 2017 as the 180.80 date for the felony complaint.

37. That there was no indictment by the grand jury on docket number 2017BX 017599.

38. On July 13, 2017, all of the charges set forth above under docket number 2017BX017599 were dismissed in favor of the Plaintiff, Michael Ortiz.

39. Mr. Ortiz was released from incarceration at the George Motchan Detention Center in Rikers Island on or about July 13, 2017.

40. That Plaintiff remained incarcerated on the felony allegations without probable cause to have believed that Mr. Ortiz had in fact committed a crime.

41. That the felony complaint filed by the Bronx District Attorney's office alleged by Detective William Maye stated that Mr. Ortiz committed the following offenses on or about August 27, 2016, at approximately 7:40 PM in front of 12 West Fordham Road, county of the Bronx, State of New York.

42. That Detective William Maye accused Mr. Ortiz of attempted murder, assault, gang assault, criminal possession of a weapon based upon official investigation, video surveillance and witnesses known to the Police Department.

43. That Plaintiff was caused to spend approximately sixty one (61) days incarcerated at Rikers Island.

44. As a consequence thereof, Plaintiff has been injured.

45. That at all times during the events described herein, the Defendants were engaged in a joint venture and formed an agreement to violate Plaintiff's constitutionally protected rights.

46. That the Defendant officers assisted each other in performing the various unlawful actions described herein and lent their physical presence and support and the authority of their office to each other during the stated events described herein by willfully arresting Plaintiff on charges which they knew or should have known lack probable cause and that were unlikely to yield a criminal conviction.

47. That the Defendant officers acted maliciously and with intent to violate Plaintiff's rights.

48. That as a direct and proximate result of the acts of Defendants, plaintiff suffered injuries and damages:

49. That the Defendants violated Plaintiff's right to Due Process of Law under the Fourteenth Amendment to the Constitution of the United States.

50. That the Defendants violated Plaintiff's right to be free from unlawful search and seizures under the Fourth Amendment to the United States Constitution.

51. Mr. Ortiz was subjected to and suffered undue emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, inconvenience, and anxiety.

52. That the Defendants officers' actions are part of a broader pattern of systemic abuse of police power that has become prevalent in this police precinct and most minority communities.

53. That Detective Maye's abuse of his position in this incident is not just a violation of plaintiff's individual constitutional rights; it is a symptom of one cause of the defect in broader police to community relations.

54. That officers Maye, Kur, Monge, and the New York Police Department have a duty as servants of the law to follow procedures that are put in place to protect the rights of all the citizens of the United States as outlined in the Constitution of the United States, including those of Plaintiff Michael Ortiz.

55. Officers Maye, Kur and Monge failed their duty to faithfully execute the responsibilities of their position and to protect the rights of Plaintiff Michael Ortiz.

56. That the City of New York and the NYPD failed their duty to properly supervise, train or discipline the individual Defendant officers.

57. That the unlawful action by the Defendant police officers' overly aggressive actions, puts the lives of citizens in jeopardy particularly the lives of black men.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS UNDER 42 U.S.
C. SECTION 1983, FOR VIOLATING PLAINTIFF'S CONSTITUTIONAL RIGHTS
UNDER THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED
STATES AND UNDER THE CONSTITUTION OF THE STATE OF NEW YORK,
ARTICLE 1 SECTION 12.**

58. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “57’ with the same force and effect as though more fully set forth at length herein.

59. That at all times herein mentioned the Plaintiff, was unlawfully seized, detained, restrained and held in custody on April 28, 2017.

60. That Defendants violated Mr. Ortiz’s Fourth Amendment right to be secure in his persons, houses, papers and effects, against unreasonable searches and seizure, and that no Warrant shall issue without probable cause supported by Oath or affirmation and particularly describing the place to be searched and the persons or things to be seized.

61. Plaintiff was made to fear for his life as a result of the Defendant’s wrongful and unconstitutional actions described and set forth herein.

62. That plaintiff suffered emotional pain, humiliation, and degradation, due to the Defendant’s police officers illegal seizure.

63. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably arrested Plaintiff without probable cause to have believed that Plaintiff was the person involved in the accusation under docket no. 2017BX 017599.

64. That the Defendants lacked probable cause is obtaining a warrant against Plaintiff Ortiz.

65. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized the Plaintiff and caused Plaintiff’s incarceration for sixty two days in Rikers Island.

66. Mr. Ortiz suffered emotional distress, trauma, embarrassment, ridicule, scorn, and deprivation of his civil rights caused by the Defendant's police officers unlawful accusations.

67. Defendants' unlawful actions were done willfully and knowingly with the specific intent to deprive Plaintiff of his constitutional rights.

68. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, FOR FALSE ARREST**

69. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 68", with the same force and effect as though more fully set forth at length herein.

70. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers were, and still are, members of the New York City police officer assigned to the Fifty second (52) police precinct located in the Bronx New York.

71. That at all time herein mentioned the defendant, City of New York, maintained, operated, and controlled the Police Department within the City of New York.

72. That at all times hereinafter mentioned the police officers employed by the Defendant City of New York, were servants, agents, and/or employees of the defendant City of New York, and were acting within the scope of their employment.

73. That on or about April 28, 2017, at approximately 6:42 pm. Plaintiff, arrested as he was walking down the street in Bronx New York.

74. That the defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, arrested, searched, imprisoned, detained, restrained, and, incarcerated the Plaintiff.

75. That at all time herein mentioned, and based upon information and belief, Plaintiff Ortiz 5was detained, and incarcerated by the individuals named Defendants and the New York City Police Department for sixty two days without probable cause, legal justification, or consent of the Plaintiff.

76. That at all times herein mentioned, the Plaintiff was falsely arrested, imprisoned, detained, restrained, incarcerated, and badgered by Defendant police officers who were members of the New York City Police Department of the City of New York, who were agents, servants and/or employees of the defendant, City of New York, and who were acting under and within the scope of their employment at the time of the incident complained of herein.

77. That at all times herein mentioned, the Defendants intended to confine the plaintiff without privilege, the plaintiff was conscious of the confinement, and plaintiff did not consent to the confinement.

78. That during plaintiff's unlawful, and wrongful incarceration, Plaintiff was forcibly handcuffed, searched, assaulted, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, scorn, and the use of excessive force by the Defendant officers.

79. That as a result of the false imprisonment, arrest, detention, incarceration, Plaintiff Ortiz suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his civil rights, and freedom, under the Constitution of the United States, and under Article 1 Section 12 of the Constitution of the State of New York.

80. That the false arrest, imprisonment, detention, and incarceration of the Plaintiff by the Defendant police officers constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's liberty.

81. That by reason of the foregoing, Mr. Ortiz has been damaged, a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**PLAINTIFF'S THIRD CAUSE OF ACTION AGAINST DEFENDANTS FOR FALSE
IMPRISONMENT.**

82. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 81", with the same force, and effect, as though more fully set forth at length herein.

83. Defendants initiated Plaintiff's arrest, and detention without probable cause to have reasonably believed that Ortiz had been involved in gang activity and assault on a victim that was not even named in Detective Wayne's felony accusation.

84. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely imprisoned and detained Plaintiff Michael Ortiz for sixty two days without legal justification.

85. That at all times herein mentioned, the Plaintiff was falsely imprisoned, detained, and restrained by police officers Wayne, Kur and Monge who were acting under color of law and within the scope of their employment.

86. That as a result of the false imprisonment by the Defendants, their agents, servants and/or employees, the Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom.

87. That as a direct, and proximate result of the acts, and omissions of the Defendants herein described, the Plaintiff was caused to suffer great physical pain and agony, and was caused great emotional pain, anguish and suffering and harm.

88. That in the manner describes herein, the Defendants acted carelessly and recklessly with total disregard of the plaintiff's constitutional rights.

89. That the Defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon the plaintiff.

90. That the Plaintiff was intentionally confined without privilege or probable cause and that the Defendants could not have reasonably believed that plaintiff had committed a crime.

91. That at all times mentioned herein, Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely imprisoned.

92. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

93. The common law tort of false arrest is a species of false imprisonment, and action derived from the ancient common-law action of trespass [that] protects the personal interest of freedom from restraint of movement." Singer v. Fulton County Sheriff, 63 F. 3d 110, (2d Cir. 1995) (quoting Broughton v. State of New York, 37 N.Y. 2d at 93, 335 N.E 2d at 314.

94. Under New York Law, there are four elements of a false imprisonment claim: (1) the defendant intended to confine the plaintiff, (2), the plaintiff was conscious of the confinement, (3) the plaintiff did not consent to the confinement, and (4) the confinement was not otherwise privileged." Id. The Singer Court also cited Hygh v. Jacobs, 961 F 2d 359, at 366 ("the elements of a claim of false arrest under section 1983 are substantially the same as the elements of a false arrest claim under New York Law."

95. Plaintiff's claim under section 1983 for false arrest recognizes the same state elements, but also rests on the right of the individual to be free from unreasonable seizures, including arrest without probable cause.

96. Mr. Ortiz was intentionally and unlawfully confined by the Defendants, police officers in that Plaintiff was sufficiently and significantly deprived of his liberty, and was not free to move, his liberty was severely restricted by the defendant officer.

97. Plaintiff was conscious of defendant's illegal restraint and was well aware of the facts that he was being tormented by Officers Kur, Wayne, and Monge without probable cause, and that the Defendant officers intended to confine the Plaintiff during defendant's unwarranted illegal actions, all without legal justification, probable cause, or privileged.

98. The officers lacked knowledge or reasonable trustworthy information sufficient to warrant a person of reasonable caution in the belief that Plaintiff had been engaged in an unlawful offense thus justifying the Plaintiff's prolonged detention.

99. As a direct and proximate cause of Defendants unlawful actions, Plaintiff was caused to have suffered harm and sever emotional stress, and loss of liberty.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL ORTIZ AGAINST DEFENDANT,
DETECTIVE WILLIAM MAYE FOR MALICIOUS PROSECUTION UNDER NEW
YORK STATE LAW AND UNDER 42 U.S. CODE SECTION 1983.**

100. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 99", with the same force and effect, as though more fully set force at length herein.

101. That the defendants, City of New York, by their agents, servants and / or agents, including but not limited to defendant Police officers William Maye, Jorge Monge, and police

officer Kur, were acting within the scope of their employment, and who falsely, and maliciously, without probable cause, charged the plaintiff with crimes, and arrested the plaintiff, and continued the unlawful prosecution against plaintiff knowing that plaintiff had not been engaged in any form of unlawful activity as set forth in the felony complaint docket number 2017BX017599 which was dismissed on July 13, 2017.

102. That nevertheless, Defendants sought plaintiff's confinement, and prosecution.

103. That the initiation of the prior proceeding was with malicious intent.

104. That all the charges against the Plaintiff were terminated on July 13, 2017, in favor of the plaintiff.

105. That by reason of the foregoing, the plaintiff has been injured and has suffered great emotional, and mental distress, and has been greatly injured, and sustained damages in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR WRONGFUL INCARCERATION.**

106. That plaintiff repeats, realleges each and every allegation contained in Paragraphs Numbered "1" through "105", with the same force and effect as though more fully set forth at length herein.

107. That by reason of the foregoing, the Plaintiff was intentionally confined by defendants for sixty two days in a facility maintained, and operated by the New York City Department of correction at Rikers Island without probable cause, or legal justification, and without Plaintiff's consent.

108. As a consequence thereof, Michael Ortiz was substantially harmed, and injured.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF MICHAEL
ORTIZ AGAINST DEFENDANTS CITY OF NEW YORK, UNDER RESPONDEAT
SUPERIOR.**

109. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “108”, with the same force and effect as though more fully set forth at length herein.

110. That the municipal Defendants City of New York, and the New York City Police Department, hired, and supervised ,the individual Defendants Officers William Maye, Jorge Monge, Kur and John Doe No.1.

111. Officers Maye, Monge, Kur, and John Doe No.1 , individually and collectively, committed the wrongs stated herein while acting within the scope of their duties as employees of the City of New York and the New York City Police Department.

112. Officers, Detective William Maye is believed to have outranked other individual Defendants who participated in the unlawful acts stated herein against Plaintiff Ortiz.

113. As a result, the Municipal Defendants, City of New York and The New York City Police Department are liable for the unlawful acts of their employees, and subordinates, under respondeat superior.

**AS AND FOR PLAINTIFF'S SEVENTH CAUSE OF ACTION AGAINST THE CITY OF
NEW YORK FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. SECTION 1983.**

114. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “113” with the same force and effect as though more fully set forth at length herein.

115. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and

sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.

116. The Defendants unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

117. That the acts, omissions, and practices alleged herein constitute a pattern or practice of conduct embedded within the New York City Police Department including the 52nd police precinct which the Commission of the New York City Police Department was aware of such violation caused the violation of the rights privileges and immunities of the Plaintiff which are secured or protected by the Constitution of the United States.

118. That the New York City Police Department's conduct amounted to a policy of deliberate indifference to Plaintiff's constitutional rights to be free from an unlawful detention without probable cause.

119. That the law recognizes several ways in which a municipal policy can be set by a municipality to cause it to be liable under section 1983. 1) the explicit setting of a policy by the government that violates the Constitution, 2) the action of a policy makers within the government, 3) the adoption through a knowing failure to act by a policy maker of actions by his subordinates that are so consistent that they have become custom or 4) the failure of the government to respond to an obvious need for better training of its employees in such a manner as to show "deliberate indifference "to the risk that not addressing the need will result in constitutional violations.

120. That the Defendants knew or should have known of the deficiencies alleged herein and that the New York City Police Department's failure to supervise, or adequately train

Defendant William Maye, Jorge Monge and officer Kur, amounts to deliberate indifference to the Plaintiff's Constitutional rights protected under the Fourth, and Fourteenth Amendments.

121. The Defendants had a duty to conduct a reasonable investigation of the fact that Plaintiff Michael Ortiz was not engaged in the alleged criminal activity on or about August 27, 2016, which caused Plaintiff to be remanded and held in custody of the New York City Department of Correction for sixty days.

122. That the Defendants' deliberate indifference caused the violations of the constitutional rights alleged herein.

123. Defendants' practice of arresting young males of African and Hispanic descent and falsely charging such individuals with crimes that the officers knew or should have known were not committed by the targeted individuals constitutes a practice that, upon information and belief, is widespread and resulted in an impediment of Plaintiff's constitutional right to be free from unlawful detention and incarceration.

124. The acts and omissions set forth herein were carried out by the aforementioned individual Defendants, and subordinates in their official capacity as police officers of the New York City Police Department pursuant to the customs, policies and practices, within the New York City Police Department under the supervision of Commissioner James P. O'Neil under color of state law.

125. That the failure to supervise train and or discipline the Defendant officers resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiff Michael Ortiz.

126. As a direct and proximate result of the foregoing practices and customs, Plaintiff was held in custody in Rikers Island for sixty two days without legal justification.

127. That the policy makers within the City of New York and the New York City Police Department including commissioner James O'Neil, knew or should have known that the policies in effect during the time of the Plaintiff's unlawful seizure and detention were being ignored, and that the Defendants were deliberately indifferent to Mr. Ortiz's constitutional rights.

128. The policy makers within the New York City Police Department had constructive knowledge of the foreseeable injuries to the Plaintiff as set forth above and failed to do anything about it.

129. Plaintiff's right to be free from arbitrary government actions including the right to be free from unreasonable search and seizure which caused Plaintiff's injuries without legal justification, was clearly established on April 28, 2017.

130. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

131. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights.

132. As consequence thereof, Plaintiff has been greatly injured.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK UNDER 42 U.S.C. SECTION 1983, FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE DEFENDANTS WILLIAM MAYE, JORGE M ONGE AND POLICE OFFICER KUR

133. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 132", with the same force and effect as though more fully set forth at length herein.

134. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the defendant, City of New York.

135. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department.

136. That the City of New York failed to train, supervise, or discipline the municipal Defendants named herein who unlawfully held and detained Plaintiff for a period of sixty two days in custody of the New York City Department of Correction without probable cause or legal justification.

137. That the defendant City of New York's failure to properly assign, train, supervise or discipline its Police Department employees including the named Defendants involved in this incident herein, constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed the defendants to believe that they could violate plaintiffs' constitutional rights with impunity.

138. By reason of the foregoing, the individual defendants individually, and through defendant's agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the plaintiff including his loss of liberty and permanent emotional distress.

139. That the City of New York should be held liable for the underlying constitutional violations committed by non-policy makers employees due to the fact that the City's policy and

customs of inaction is objectively deliberately indifferent to the likelihood that a constitutional violation would occur.

140. That there was an obvious need for additional training and supervision which the City was aware of and failed to provide.

141. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

142. That the failure of the City of New York, and the New York City Police Department and Commissioner James O'Neil to adequately train, supervise or discipline or in any other way control the behavior of the municipal defendants identified herein in the exercise of their official functions, and their failure to enforce the laws of the State of New York, and the regulations of the City of New York Police Department is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, Michael Ortiz.

143. That such conduct, or lack thereof exhibited a lack of the degree of due care which a reasonable and prudent individual would have shown in executing the duties of the Commissioner of the New York City Police Department.

144. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

145. As consequence thereof, Plaintiff has been greatly injured.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDENTS WILLIAM MAY, JORGE MONGE, AND POLICE OFFICER KUR TO THE INTENTIONAL INFLICTION OF EMOTIONAL STRESS OF PLAINTIFF MICHAEL ORTIZ.

146. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “145” with the same force and effect as though more fully set forth at length herein.

147. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff.

148. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants unlawful and reckless actions as more fully described herein.

149. Plaintiff's claim for the Intentional Infliction of Emotional Distress was caused by the Defendant New York City Police officers who intentionally and without reason, privilege or probable cause arrested Mr. Ortiz and charged with ten (10) crimes including attempted murder of an alleged victim whose name was not disclosed on the felony complaint filed by Detective William Maye on April 19, 2017.

150. That Plaintiff's claim grounded under Intentional Infliction of Emotional Stress is also predicated on the fact that Defendant William Maye through his attempt to charged Mr. Ortiz with attempt murder and gang affiliation and violence was also based on an alleged surveillance of Plaintiff engaged in concert with three other individuals in criminal activity to wit the beating of an alleged victim.

151. That in addition to failing to name the alleged victim in officer's Maye's felony complaint, upon information and belief, the alleged surveillance video was never produced by the Defendant police officers or the New York City Police Department or the Bronx District

Attorney's officer, nor was such surveillance video provided to the defense of Michael Ortiz as required under **Brady v. Maryland**, 373, U.S. 83, (1963)

152. New York State Law for the Claim of Intentional Infliction of Emotional Distress is well established and recognized throughout the State of New York. The tort has four (4) elements; 1) extreme and outrageous conduct, 2), intent to cause severe emotional distress, 3), a causal connection between the conduct and the injury, and 4) severe emotional distress. **Howell v. New York Post Co.**, 81 N.Y. 2d 115, 121, 596 N.Y.2d 350, 353, 612 N.E. 2d 699, 702 (1993).

153. New York Court have recognized this claim when the conduct complained of " is so outrageous and character and so extreme in degree as to go beyond all possible bounds of decency, and to be regarded as atrocious and utterly intolerable in a civilized society." **Murphy v. American Home Products Corp.**, 58 N.Y. 2D 293, 303, 461 N.Y.S.2d 232, 236, 448 N.E. 2d 86, 90 (1983).

154. The acts committed against the Plaintiff by the Defendant police officers was clearly intended to cause the Plaintiff extreme physical damage to his mind and body by willfully and deliberately failing to produce a surveillance video and failing to name the alleged victim who was allegedly assaulted by the Plaintiff on or about August 27, 2016.

155. That the officers intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by Defendants' unlawful and unprivileged confinement of the Plaintiff for sixty two days which resulted in serious emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE CITY OF NEW YORK AND DEFENDANTS WILLIAM MAYE, JORGE
MONGE, POLICE OFFICER KUR AND JOHND DOE NO.1, UNDER 42. U.S. C.
SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS UNDER THE DUE
PROCESS OF LAW CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES**

156. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through 155", with the same force and effect as though more fully set forth at length here herein.

157. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs' right to free from the deprivation of liberty without due process of law.

158. As direct and proximate result of the defendant officers' conduct, Plaintiffs were greatly humiliated, embarrassed, and injured, and have been caused to suffer great pain and suffering and mental anguish.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

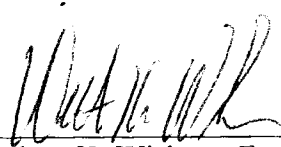
B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: January 26, 2018
New York, New York



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